No.4 Is A Mother Of The Deceased Sri. M. ... vs No.1 Has Filed The Written Statement To ... on 19 October, 2016

IN THE COURT OF THE IX ADDL. SMALL CAUSES AND ADDL.
MACT., BANGALORE, (SCCH-7)

Dated this, the 19th day of October, 2016.

PRESENT : SMT.INDIRA MAILSWAMY CHETTIYAR,
B.Com.,LL.B.(Spl),L.L.M.,
IX Addl. Small Causes Judge & XXXIV ACMM,
Court of Small Causes,
Member, MACT-7, Bangalore.

M.V.C.No.2107/2015

1. Mrs. M. Rathnamma, ... PETITIONERS
W/o. Late M. Eshwarappa,
Aged about 29 years.

2. Baby E. Ashwini Sindhu,
D/o. Late M. Eshwarappa,
Aged about 2 years.

3. Mr.Venkataramanappa,
S/o. Late Venkappa,
Aged 55 years.

4. Mrs. Ramanjinamma,
W/o. Venkataramanappa,
Aged about 50 years.

All the Petitioners are R/at;

No.2-211-1,
Honnampalli,
Honnampalli Parigi,
Parigi, Ananthapura,
Andhrapradesh-515 261.

(Since 2nd Petitioner is a minor
represented by natural guardian her
mother Mrs. M. Rathnamma)

(By Sri. P. Putta Raju, Adv.,)

V/s

1. ICICI Lombard General Ins. ..... RESPONDENTS
Co. Ltd.,

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T.P. Claim Hub, No.89, 2nd Floor,
S.V.R. Complex,
Hosur Main Road,
Madiwala,
Bangalore-560 068.

(Policy No.3004/TM-
00253774/4/00/000,
Valid from 02.09.2014 to 01.09.2015)

2. Manager Partner,
M/s. Megha Travels (R),
No.56, Ramakrishna Reddy Layout,
Konapana Agrahara,
Electronic City,
Bangalore-560 100.

(R-1 By Sri. Gururaj Salur, Adv.,)
(R-2 Exparte)
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JUDGMENT

The Petitioners No.1 to 4 have filed the present petition as against the Respondents No.1 and 2 under Section 166 of the Motor Vehicles Act, 1989, praying to award compensation of Rupees 40,00,000/- with interest at the rate of 12% p.a., in respect of death of Sri. M. Eshwarappa S/o. Venkataramanappa.

2. The brief averments of the Petitioners' case are as follows;

a) On 01.04.2015 at about 10.15 p.m., the deceased was walking on extreme side of Bangalore Main Road, near Chandu Motors, Singasandra. At that time, a Bus bearing Registration No.KA-51-C-114 driven by its driver from Hosa Road to proceed towards Kudlu Gate in a high speed, in a rash and negligent manner, without observing traffic rules, dashed to the deceased. Due to the impact, the deceased fell down and sustained grievous injuries.

b) Immediately after the accident, the deceased was shifted to LIVE 100 Hospital for treatment. The Doctor in LIVE 100 Hospital examined and declared that, the deceased succumbed on the way to the Hospital. Thereafter, post mortem was conducted at Victoria Hospital and the body of the deceased was handed over to them to perform his last rights. They have spent Rupees 1,00,000/- for funeral and obsequies ceremonies.

c) As on the date of accident, the deceased was hale and healthy and he was aged about 32 years and he was working as a Security Guard at M/s. ISS SDB Security Services Private Limited, Bangalore and getting salary of Rupees 12,000/- per month.

d) The only bread earner of the family has taken away. This accident occurred due to rash and negligent driving by the driver of the offending Bus. The Police have filed a charge sheet as against

the driver of negligent Bus.

d) The 1st Respondent is the Insurer and the 2nd Respondent being the Owner have vicariously liable for negligent act of the driver. Therefore, under these circumstances, this Hon'ble Court may be pleased to award a sum of Rupees 40,00,000/- towards funeral expenses, loss of dependency, loss of estate, loss of consortium, loss of companionship, loss of love and affection, general and special damages, etc., Hence, this petition.

3. Initially, though the notice was duly served on the Respondent No.1, it was remained absent and hence, it was placed as exparte on 16.07.2015. Later, the Respondent No.1 has appeared before this Tribunal through its Learned Counsel and as per the Order dated 22.09.2015 passed on I.A.No.I, the exparte order is set-aside and the Respondent No.1 is taken on file. But, initially, inspite of giving sufficient opportunities, the Respondent No.1 had not filed the written statement. Later, as per the Order dated 10.03.2016 passed on I.A.No.II, the written statement filed by the Respondent No.1 is taken on file.

4. Though the notice was duly served on the Respondent No.2 through RPAD, he was remained absent and hence, he is placed as exparte on 22.09.2015.

5. The Respondent No.1 inter-alia denying the entire case of the Petitioners, has further contended as follows;

a) The petition for grant of compensation for the death of one Eshwarappa, who was died in an alleged accident that occurred on 01.04.2015 involving Bus bearing No.KA-51-C-114 is not maintainable either in law or on facts and the same is liable to be rejected in limine.

b) It admits that, having insured the Bus bearing No.KA- 51-C-114 in terms of the policy of insurance issued, which is in accordance with the provisions of the Motor vehicles Act and the liability of it, is limited to the terms and conditions of the policy of insurance issued.

c) The owner of the vehicle has not submitted the claim form and other documents, like, RC, Driving licence, Permit, FC, etc., for verification. Hence, it permitted to file additional statement of objections as and when the said requirements are submitted by the owner of the vehicle in question.

d) If the owner of the vehicle has not contest the claim petition or if he is placed exparte before this Hon'ble Court or if he has colluded with the Petitioner, then, it be permitted to contest the matter on all grounds available under Section 170 of the Motor Vehicles Act without prejudice to the ground available under Section 149(2) of the M.V. Act.

e) The driver of the Bus bearing No.KA-51-C-114 drove the same without having a valid and effective driving license, which is in contravention of the policy conditions of the Motor Vehicles Act and the owner of the said vehicle has allowed the driver to drive the same knowing fully well that, he has not having valid and effective driving license to drive the vehicle in question. Hence, it is a clear violation of the policy terms and conditions and also the Motor Vehicles Act. Hence, it is not liable to

pay any compensation.

f) The Bus bearing No.KA-51-C-114 was not having valid permit and fitness certificate to ply on the public place and hence, it is a clear violation of the policy terms and conditions and Motor Vehicles Act. Therefore, it is not liable to pay compensation.

g) As per Section 134(c) of the Motor Vehicles Act, 1988, it is a mandatory duty of the second Respondent to furnish all particulars of policy, date, time and place of the accident, particulars of policy, date, time and place of the accident, particulars of injured and the name of the driver and particulars of the driving licence. But, in this case, the second Respondent has not complied with the statutory provision and as per Section 158(6) of Motor Vehicles Act, 1988, it is mandatory duty of the jurisdictional Police to forward all relevant documents to the concerned insurer within 30 days from the date of information, but, in this case, the Electronic City Traffic Police have not forwarded any documents to it and failed to complied the statutory provisions. Hence, it is not liable to pay any compensation.

h) A sum of Rupees 40,000/- claimed by Petitioner is highly excessive, arbitrary and disproportionate to the age, income and avocation of the deceased and the Petitioners are trying to make a windfall out of an unfortunate accident.

i) The Petitioners are not entitled to receive any interest on future loss of earnings and if the compensation is granted on any other heads, the rate of interest should not exceed more than 6% in view of the several recent decisions of our Hon'ble High Court of Karnataka. Hence, prayed to dismiss the petition with exemplary costs.

6. Based on the above said pleadings, I have framed the following Issues;

ISSUES

1. Whether the Petitioners prove that, they are the dependents and legal representatives of deceased SRI. M. ESHWARAPPA?

2. Whether the Petitioners prove that, the accident occurred due to rash and negligent driving of the Bus bearing Registration No.KA-51-C-

114 by its driver and Sri. M. Eshwarappa died due to the injuries sustained in the accident?

3. Whether the Petitioners are entitled for compensation? If so, how much and from whom?

4. What Order?

7. In order to prove their case, the Petitioners have examined the Petitioner No.1 as P.W.1 and also examined one witness as P.W.2 by filing the affidavits as their examination-in- chief and have placed reliance upon Ex.P.1 to Ex.P.17. On the other hand, the Respondent No.1 has not adduced

any evidence on its behalf.

8. Heard the arguments.

9. In support of the submission, the Learned Counsel appearing for the Petitioner Sri. P. Putta Raju has placed reliance upon the decision reported in, 2013 ACJ 1403 Supreme Court of India at New Delhi (Rajesh and Others V/s. Rajbir Singh and Others), wherein, it is observed that, MOTOR VEHICLES ACT 1988-Section 168 (1)-Just compensation -Whether Tribunal/Court has a duty, irrespective of the amount claimed, to award a just, equitable, fair and reasonable compensation-Held: yes.

Quantum-Fatal accident- Principles of assessment-Future prospects-Whether formula for increase of income for future prospects adopted for persons with permanent jobs in Sarla Verma's case, 2009 ACJ 1298 (SC), may also be applied to persons who were self-employed or were engaged on fixed wages-Held:yes:50 percent of actual income(after deduction of tax) or persons below 40 years; 30 percent for age group of 40 to 50 years: 15 percent for age group of 50 to 60 years; but, no addition thereafter.

Quantum-Fatal accident- Principles of assessment-Consortium-Loss of -it would be just and reasonable if Rupees 1,00,000/- is awarded for loss of consortium.

Quantum-Fatal accident- Principles of assessment-Funeral expenses- it would be just, fair and equitable, under the head of funeral expenses, at least Rupees 25,000/- may be awarded in the absence of evidence for higher expenses.

Quantum-Fatal accident- Deceased aged 33, clerk in government school, drawing Rupees 9,520/- p.m., -Claimants:

> widow, 3 minor children and mother- Tribunal awarded Rupees 8,96,500/- which was enhanced to Rupees 10,17,000 in appeal-Apex Court added 5- percent of income towards future prospects, assessed income at Rupees 14,280/- p.m., deducted 1/4th for personal expenses of the deceased, adopted multiplier of 16 and allowed Rupees 20,56,320/- plus Rupees 1,00,000/- for loss of consortium, Rupees 1,00,000/- for loss of care and guidance for minor children and Rupees 25,000/- for funeral expenses-Award of Rupees 10,17,000/- by High Court enhanced to Rupees 22,81,320/-.
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> 10. In support of the submission, the Learned Counsel appearing for the Respondent No.1 Sri. Gururaj Salur has placed reliance upon the decisions reported in,
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> i) (2013) 3 Supreme Court Cases (Cri) 826 - (2013) 9 Supreme Court Cases 65 (Reshma Kumari and Others V/s.

Madan Mohan and Another), wherein, it is observed that, MOTOR VEHICLES ACT 1988-Ss.166 and 158-Fatal accident- compensation under S.166-Determiantion of-Addition to be made to income of deceased towards his future prospects, in various kinds of employment and remuneration packages, depending on age of deceased-Method therefore stated in Sarla Verma, (2009) 6 SCC 121(in Para 24 therein), affirmed-For the above purpose, reiterated, actual income would mean income after paying tax, if any- Tort Law-Compensation/Damages-Future prospects)

ii) (2015) 9 Supreme Court Cases 166 (National Insurance Company Limited V/s. Pushpa and Others), wherein, it is observed that, MOTOR VEHICLES ACT 1988-S.166-Compensation/Damages-Addition of income for future prospects vis-a-versa persons who are self employed or on fixed wages-

Divergent opinions reflected in Rajesh (2013) 9 SCC-54 and Reshma Kumari (2013)9 SCC 65-Reshma Kumari Case though rendered earlier not taken note of in Rajesh case- Need for authoritative pronouncement-Matter referred to Larger Bench.

iii) 2009 AIR SCW 4992 (Smt. Sarla Verma and Others V/s. Delhi Transport Corporation and Another), wherein, it is observed that, (B) MOTOR VEHICLES ACT (59 of 1988), S.168-Compensation-Determination

-Addition to income for future prospects- Deceased having permanent job and was below 40 years-Addition of 50% of actual salary should be made to income of deceased towards future prospects.

50% of actual salary should be added to the actual salary income of the deceased towards future prospects, where the deceased had a permanent job and was below 40 years (Where the annual income is in the taxable range, the words' actual salary' should be read as 'actual salary less tax'). The addition should be only 30% if the age of the deceased was 40 to 50 years.

There should be no addition, where the age of the deceased is more than 50 years.

Though the evidence may indicate a different percentage of increase, it is necessary to standardize the addition to avoid different yardsticks being applied or different methods of calculations being adopted. Where the deceased was the self employed or was on a fixed salary (without provision for annual increments etc) the Courts will usually take only the actual income at the time of death. A departure there from should be made only in rare and exceptional cases involving special circumstances.

iv) (2011) 4 Supreme Court Cases 589 (Union of India and Ohters V/s. S.K. Kapoor), wherein, it is observed that, B. Constitution of India-Arts.141 and 145-Supreme Court whether itself bound-

Inter-Bench conflicts-Coordinate Benches- Reiterated, prior decision of a coordinate Bench is binding on subsequent Bench of equal strength- if a subsequent coordinate Bench of equal strength wants to take a different view from prior decision of a coordinate Bench, it can only refer matter to a

larger Bench-Further held, that, T.V. Patel case,(2007) 4 SCC 785, is judgment per incur am as S.N. Narual case (2011), 4 SCC 591, was not considered in it-Supreme Court Rules, 1966.

v) MFA 706/2015 (MV) High Court of Karnataka At Bengaluru (The Karnataka State Road Transport Corporation V/s. Smt. Shanthamma and Another), wherein, it is observed that,

6. Having heard the Learned Counsel for parties, perused pleadings and evidence, both oral and documentary, there is no more doubt that, the claimants were unable to establish the avocation of the deceased as driver of Auto Rickshaw or that, his earning was Rupees 6,000/- per month. If regard is had to the fact that, deceased aged 24 was an able bodied young man, during the year 2011, it cannot but, be said that, he would have earned at least Rupees 6,000/- per month. It is no doubt true that, addition of future prospects to determine loss of dependency arises only in case where the deceased was in a stable employment and was drawing a regular income and not otherwise. In the instant case, neither stable employment nor regular income is established so as to call for addition of true prospects as done by the MACT.

11. My answers to the above said Issues are as follows;

Issue No.1	:	Partly in the Affirmative,
Issue No.2	:	In the Affirmative,
Issue No.3	:	Partly in the Affirmative, The Petitioners are entitled for compensation of Rupees 25,95,346/- with interest at the rate of 9% p.a. from the date of the petition till the date of payment, from the Respondent No.1.
Issue No.4	:	As per the final Order,

for the following;

REASONS

12. ISSUE NO.1 :- The P.W.1, who is the Petitioner No.1 has stated in her examination-in-chief that, the Petitioner No.2 is her minor daughter and the Petitioners No.3 and 4 are her parent- in-laws and they have filed the present claim petition for claiming compensation on account of death of her husband M. Eshwarappa in the road traffic accident dated 01.04.2015.

13. The Plaintiffs have produced Ex.P.1 FIR, Ex.P.2 Complaint, Ex.P.3 Charge Sheet, Ex.P.7 Inquest, ExP.8 PM Report, Ex.P.9 Death Certificate relating to M. Eshwarappa, i.e., the deceased and Ex.P.14 Aadhaar Card relating to E. Ashwini Sindhu, Ex.P.15 Election Identity Card relating to Venkappa, Ex.P.16 Election Identity Card relating to Ramanjinamma and Ex.P.17 Birth Certificate relating to E. Ashwini Sindhu.

14. On perusal of the said oral evidence of P.W.1 as well as the contents of the said material documents, it clearly goes to show that, the Petitioner No.1 is a wife, the Petitioner No.2 is a minor daughter and the Petitioner No.3 is a father and the Petitioner No.4 is a mother of the deceased Sri. M. Eshwarappa S/o. Venkataramanappa, who died on the way to the Hospital due to the accidental injuries, which caused to him in the road traffic accident, which was taken place on 01.04.2015 on 10.15 p.m., near Chandu Motors, Bangalore Main Road. Hence, the Petitioner No.1 being a wife, the Petitioner No.2 being a minor daughter, the Petitioner No.3 being a father and the Petitioner No.4 being a mother of the said deceased are the legal representatives of the said deceased. But, based on the same, it cannot be said that, all the Petitioners are the dependants upon the said deceased, as, it is well settled principle of law that, the father cannot be considered as a dependant upon the son. Hence, the Petitioner being a wife, the Petitioner No.2 being a minor daughter and the Petitioner No.4 being a mother can only be considered as the dependants upon the deceased Sri. M. Eshwarappa S/o. Venkataramanappa. Accordingly, I answered Issue No.1 partly in the Affirmative.

15. ISSUE No.2 :- The P.W.1 has stated that, on 01.04.2015 at about 10.30 p.m., she received a message from her brother-in-law, who has informed her that, her husband had met with an accident at 10.15 p.m., while he was walking on extreme left side of Bangalore Main Road, near Chandu Motors, Singasandra towards Singasandra Bus Stop, at that time, a Bus bearing Registration No.KA-51-C-114 driven by its driver from Hosa Road to proceed towards Kudlu Gate on Bangalore Main Road, with a high speed, in a rash and negligent manner, without observing traffic rules and regulations and dashed to her husband and ran away from the spot, after leaving the Bus near Madiwala Traffic Police Station. She has further stated that, due to the terrible impact, her husband fell down and sustained grievous injuries all over the body and immediately after the accident, her husband was shifted to LIVE 100 Hospital for treatment, wherein, the Doctor examined her husband and has informed that, her husband succumbed to the injuries on the way to the Hospital. She has further stated that, immediately after receiving the message, they rushed to the Hospital, by that time, the dead body of her late husband was already shifted to Victoria Hospital for post mortem. She has further stated that, this accident was caused due to rash and negligent driving of the driver of the Bus bearing Registration No.KA-51-C-114 and the Police have filed a charge sheet as against the driver for the negligent act.

16. No doubt, the P.W.1 is not an eye witness to the accident in question, which caused to the deceased. In this regard, the P.W.1 has stated in her cross-examination that, she has not seen the accident. She has further stated that, the brother of her deceased husband was also not seen the accident and she has not given the complaint before the Police about the alleged accident. She has further stated that, the road on which the accident was taken place was a high way and it was having service road on its either side.

17. But, based on the said evidence elicited from the mouth of P.W.1 by the Respondent No.1, during the course of cross-examination, the above said entire evidence of P.W.1 cannot be thrown away, as, to consider the oral version of P.W.1 as well as their case, the Petitioners have produced Ex.P.1 FIR, Ex.P.2 Complaint, Ex.P.3 Charge Sheet, Ex.P.4 Spot Hand Sketch, Ex.P.5 Spot Panchanama, Ex.P.6 MVI Report, Ex.P.7 Inquest, Ex.P.8 P.M. Report and Ex.P.9 Death Certificate relating to M. Eshwarappa, which clearly disclosed that, there is no negligence on the part of the deceased in the commission of the said road traffic accident, as, he was walking on the edge of the road and the entire negligence is on the part of the driver of offending Bus bearing Registration No.KA-51-C-114 and if the driver of the offending Bus could have taken a little care while driving it on the accidental spot by observing the walking of the deceased on the edge of the accidental road, he could have avoided the said road traffic accident and could have save the valuable life of the said deceased and when the deceased was walking on the edge of the road, the said offending Bus came with very high speed with rash and negligent manner and dashed to the deceased and due to the said impact, the deceased had sustained grievous severe injuries all over his body and died on the way to the Hospital and his death is declared by the Doctor of LIVE 100 Hospital, which is clear from the following discussion. Further more, to rebut the said evidence of Petitioners both oral and documentary, nothing is available on record on behalf of the Respondents No.1 and 2, as, though the Respondent No.1 has filed the written statement to contest the case of the Petitioners, it has not adduced any evidence on its behalf to consider its specific defence and though the notice was duly served on the Respondent No.2, through RPAD, it has not appeared before this Tribunal and as such, it is placed exparte. Further, the P.W.1 has clearly denied the suggestions put to her by the Respondent No.1 during the course of cross-examination that, at the time of accident, her deceased husband was walking in the middle of the said road and due to which itself, the alleged accident was taken place and there was no negligence on the part of the driver of the offending Bus and even though the alleged accident was taken place due to the negligence on the part of her deceased husband, only to claim compensation a false complaint is lodged as against the driver of the offending Bus. From this, it appears that, though the P.W.1 has been cross-examined by the Respondent No.1, nothing has been elicited from her mouth to consider its specific defence. Further more, the Petitioners have examined the eye witness as P.W.2, who has stated in his examination-in-chief that, on 01.04.2015 as usually he was pick- up the Wipro Company Employees in his Maxi Cab to drop them to Madiwala and BTM Layout and after pick-up them, while he was going on the Hosur Road towards Madiwala, at about 10.15 p.m., and when he reached near Singasandra Bus Stop, at that time, a Mini Bus bearing Registration No.KA-51-C-114, driven by its driver in a rash and negligent manner with a high speed, by overtaking his vehicle and other vehicles, went to the extreme left side of the road and dashed to the pedestrian, who was going on the extreme left side of the road from South to North direction going towards the Singasandra Bus Stop. He has further stated that, due to the terrible impact, the pedestrian fell down on the road and sustained grievous injuries. He has further stated that, he shouted at the driver of the Mini Bus to stop the vehicle, but, he went further and stopped his vehicle and after seeing the public, he ran away from the spot along with his vehicle after stopping his vehicle. He has further stated that, he went and saw the injured person, he sustained head injury and also getting bleeding in his ear and nose and mouth. He has further stated that, with the help of the public, he shifted him to LIVE 100 Hospital for treatment, but, unfortunately, the pedestrian succumbed to the injuries on the way to the Hospital. He has further stated that, this was come to know from the Doctor, who examined him

in the said Hospital. He has further stated that, thereafter he came to know that, the injured pedestrian, who died in the said accident, is by name Eshwarappa, who was aged about 32 years. He has further stated that, this accident took place due to the rash and negligent driving of the driver of the Mini Bus bearing Registration No.KA-51-C-114 and he had given his statement to the Electronic City Traffic Police in regard to the accident. No doubt, the P.W.2 in his cross-examination has stated that, the service road was in existence on either side of the said accidental road and there was a road for the pedestrian to reach the main road from service road and there was no road about 50- 60ft away from the accidental spot to go to Bus stand. He has further admitted that, the accident was taken place on the main road. But, the said evidence elicited from the mouth of P.W.2 by the Respondent No.1, during the course of cross-examination, no way affects to consider the evidence of P.W.2, which has been stated by him in his examination-in-chief, as, the P.W.2 in his cross-examination has also clearly stated along with the public, he shifted the deceased to the Hospital and at the time of accident, he was on the right side of the road and the accidental road was situated below the flyover of the Electronic City and the width of the said accidental road was about 60-70 feet distance. From the said evidence, it is further made crystal clear that, at the time of accident, the P.W.2 was proceeding nearby the accidental spot. More so, whatever stated by the P.W.2 in his examination-in-chief is clearly corroborated with the case made out by the Petitioners as well as the oral evidence of P.W.1, which has been stated by her in her examination-in-chief.

18. The contents of Ex.P.1 FIR and Ex.P.2 Complaint clearly disclosed that, the younger brother of the deceased had lodged Ex.P.2 Complaint before the Electronic City Traffic Police as against the driver of the offending Mini Bus bearing Registration No.KA-51-C-114 by alleging that, when his elder brother, i.e., the deceased was walking by the edge of the Bangalore Main Road, near Singasandra Bus Stop on 01.04.2015 at 10.15 p.m., and at that time, the offending Mini Bus bearing Registration No.KA-51-C-114 came from Hosa Road towards Kudlu Gate on the Bangalore Main Road with very high speed, rash and negligent manner by its driver and dashed to his elder brother and the said Bus was not stopped on the accidental spot and the public, who were present on the accidental spot have shifted his brother to nearby LIVE 100 Hospital for treatment, wherein, after examination, the Doctor declared he died and the driver of the said offending Bus had left the said Mini Bus bearing Registration No.KA-51-C-114 near Madiwala and fled away and as such, he prayed to take necessary legal action as against the driver of the offending Bus and based on Ex.P.2 Complaint, the said Police have registered a criminal case as against the driver of the offending Bus for the offences punishable under Section 279 and 304(A) of IPC and Section 134(a) and (b) and 187 of I.M.V. Act. It is also clear from the contents of Ex.P.1 FIR and Ex.P.2 Complaint that, there is no delay as such in lodging Ex.P.2 Complaint in respect of the accident, which caused to the deceased.

19. The contents of Ex.P.4 Spot Hand Sketch, Ex.P.5 Spot Panchanama and Ex.P.6 MVI Report further clearly disclosed that, at the time of accident, the deceased was walking by the edge of the road and there was no negligence on his part in the commission of the said road traffic accident and the entire negligence is on the part of the driver of the Mini Bus bearing Registration No.KA-51-C-114, as, he had drove the said Bus with very high speed, rash and negligent manner and without controlling it, he dashed to the deceased. It is clearly mentioned in Ex.P.6 MVI Report that, front wind screen glass and left side head light damaged, which disclosed the terrific impact of the said road traffic accident. It is also clearly mentioned in Ex.P6 MVI Report that, the said accident

was not occurred due to any mechanical defects of the said offending Bus. From this, it is made crystal clear that, there was no negligence on the part of the deceased in respect of the said road traffic accident and the entire negligence is on the part of the driver of the offending Mini Bus bearing Registration No.KA-51-C-114 and the said offending Bus as well as its driver are very much involved in the said road traffic accident, which caused to the deceased.

20. The contents of Ex.P.7 Inquest, Ex.P.8 Post Mortem Report and Ex.P.9 Death Certificate relating to the deceased clearly disclosed that, the deceased had sustained grievous injuries all over his body in the said road traffic accident and he died due to the said fatal injuries and the cause of death is due to the injuries sustained to head and spinal cord and as on the date of accident, i.e., on 01.04.2015, he died. From this medical evidence, it is made crystal clear that, due to the said accidental injuries itself, the deceased died.

21. The contents of Ex.P.3 Charge Sheet disclosed that, since during the course of investigation, it is found that due to very high speed, rash and negligent manner of driving of the offending Mini Bus bearing Registration No.KA-51-C-114 by its driver itself, the said road traffic accident was taken place on 01.04.2015 at 10.15 p.m., near Singasandra Bus Stand on Bangalore Main Road, which dashed to the deceased, when he was walking towards the said Bus Stand by the left edge of the main road and the said offending Private Mini Bus came from Hosa Road towards Bommanahalli and due to the said impact, the deceased fell down on the road and he sustained grievous injuries on his head and he was admitted to LIVE 100 Hospital and he succumbed to the injuries on the way to the Hospital and after the accident, the driver of the said offending Private Mini Bus fled away from the accidental spot along with the vehicle and thereafter, he left the offending vehicle near by Madiwala Police Station and as such, after thorough investigation, the Investigating Officer has filed a charge sheet as against the driver of the offending Mini Bus bearing Registration No.KA-51-C-114 for the offences punishable under Section 279 and 304(A) of IPC and Section 134(a) and (b) and 187 of IMV Act. There is no allegation leveled by the Investigating Officer in Ex.P.3 Charge Sheet as against the deceased about his negligence in the commission of the said road traffic accident.

22. From the above said material evidence both oral and documentary, it is clearly proved that, due to very high speed, rash and negligent manner of driving of the offending Private Mini Bus bearing Registration No.KA-51-C-114 by its driver itself, the said road traffic accident was taken place, wherein, the deceased succumbed to the fatal injuries on the way to the Hospital and the offending Private Mini Bus bearing Registration No.KA-51-C-114 as well as its driver are very much involved in the said road traffic accident. Accordingly, I answered Issue No.2 in the Affirmative.

23. ISSUE NO.3 :- The P.W.1 has stated that, her deceased husband was aged about 32 years at the time of his death and he was hale and healthy. Except the oral version of P.W.1, the Petitioners have not produced any authenticate documents to consider the actual age of the deceased at the time of accident. Further, though the P.W.1 in her cross-examination has stated that, her deceased husband was studied up to SSLC, but, the Petitioners did not care to produce the said academic documents to show the actual age of the deceased at the time of accident. No doubt, the P.W.1 in her cross-examination has stated that, 7 years difference between her and her deceased husband. But, based on the same, it cannot be said that, at the time of accident, the deceased was more than 40

years old as suggested by the Respondent No.1 to the P.W.1, as, to consider the same, the Respondent No.1 has also not produced any documents. However, the above said medical documents, i.e., Ex.P.7 Inquest and Ex.P.8 Post Mortem Report clearly disclosed that, at the time of accident, the deceased was 32 years old. Hence, the actual age of the deceased is considered as 32 years at the time of accident.

24. The P.W.1 has stated that, at the time of accident, her late husband was working as a Security Guard at M/s. ISSS SDB Security Services Pvt., Ltd., Bangalore, for their livelihood and he was drawing a gross salary of Rupees 11,970-55 per month. The P.W.1 in her cross-examination has clearly stated that, her deceased husband was studied up to SSLC and he was working at Tata Solar Company, Electronic City, Bengaluru and through Bank Account, her deceased husband was receiving the salary from the said Company. No doubt, the Petitioners have not produced the Appointment Letter issued by the said Company to the deceased. But, it no way affects to consider the avocation and income of the deceased at the time of accident, as, the Petitioners have produced Ex.P.10 Pay Slip for the month of March 2015 and Ex.P.11 Bank Statement relating to the deceased, which clearly disclosed that, for the month of March 2015, the said earnings of the deceased was of Rupees 11,635-64 and he was not an Income Tax Assessee and he received the Net Salary of Rupees 11,665/-

for the month of April 2015. Therefore, the total salary of the deceased is considered as Rupees 11,970-55 per month at the time of accident. Furthermore, it is clear from the contents of Ex.P.10 and Ex.P.11 that, the deceased was not a self employee and he was not under fixed wages. Hence, the actual salary of the deceased is considered as Rupees 11,970-55 per month at the time of accident.

25. The P.W.1 has stated that, her deceased husband was contributing the entire earnings to the welfare of the family and if he would have alive, he had better earning prospects in future. She has further stated that, due to untimely death of her late husband, herself, her minor daughter and her parent-in-laws have caused great mental shock and agony and she has lost the companionship of her husband for the rest of her life. She has further stated that, her minor daughter has lost the love and affection of her father and her parent-in-laws have lost the love and affection of their son. She has further stated that, the only bread earner in the family has been taken away and after the death of her late husband, they are leading a miserable life.

26. While answering Issues No.1 and 2, this Tribunal has already observed and come to the conclusion that, all the Petitioners are the legal representatives of the deceased M. Eshwarappa S/o. Venkataramanappa and the Petitioners No.1, 2 and 4 are the dependants upon the said deceased and due to very high speed, rash and negligent manner of driving of the offending Private Mini Bus bearing Registration No.KA-51-C-114 by its driver itself, the said road traffic accident was taken place, wherein, the deceased succumbed to the fatal injuries on the way to the Hospital and the offending Private Mini Bus bearing Registration No.KA-51-C-114 as well as its driver are very much involved in the said road traffic accident. Hence, the Petitioners being the legal representatives and the Petitioners No.1, 2 and 4 being dependants of the said deceased are entitled for compensation under the following heads.

27. As this Tribunal has already observed and come to the conclusion based on the contents of Ex.P.10 Pay Slip for the month of March 2015 and Ex.P.11 Bank Statement that, at the time of accident, the deceased was not a self employee and he was not under fixed wages. While discussing above, this Tribunal has already come to the conclusion that, at the time of accident, the deceased was 32 years old, i.e., below 40 years. Under such circumstances, the Petitioners are entitled for future prospectus in view of death of deceased.

28. As per the decision reported in 2013 ACJ 1403 (Rajesh and Others V/s Rajbir Singh and Others) and as the deceased was aged 32 years at the time of accident, towards future prospects 50% of the income has to be added. So, 50% of Rupees 11,970-55 comes to Rupees 5,985-27. Therefore, the income of the deceased comes to Rupees 17,955-82 p.m. (Rs.11,970-55 + 5,985-27).

29. The Petitioners No.1, 2 and 4, are considered as dependents of the deceased. Therefore, deceased left behind 3 dependents. As per the principles laid down in Sarala Varma's Case, considering the number of the dependents, i.e., 3, 1/3rd of the income has to be deducted towards personal expenses of the deceased, i.e., Rupees 5,985-27 (1/3rd of Rs.17,955-82). Therefore, loss of dependency comes to Rupees 11,970-55 (Rs.17,955-82/- (-) Rs.5,985-27). The multiplier corresponding to the age of the deceased, i.e., 32 years, is 16 as per Sarala Varma's Case. Therefore, loss of dependency comes to Rupees 22,98,345- 60 (Rs.11,970-55 x 12 x 16). Therefore, the Petitioners are entitled for Rupees 22,98,345-60 towards loss of dependency due to death of M.Eshwarappa S/o. Venkataramanappa, which is rounded off Rupees 22,98,346/-.

30. The P.W.1 has stated that, she has spent a sum of Rupees 1,00,000/- towards transportation of the dead body, funeral expenses and obsequies ceremonies, etc. But, to consider the same, the Petitioners have only produced Ex.P.12 Ambulance Bill.

31. As per the principles laid down in the decision reported in 2013 ACJ 1403 (Rajesh and Others V/s Rajbir Singh and Others), loss of consortium to the Petitioner No.1, who is a wife of the deceased, should be Rupees 1,00,000/-, for loss of care and guidance for minor child should be Rupees 1,00,000/-, loss of love and affection has to be compensated by awarding Rupees 25,000/- and funeral expenses should be Rupees 25,000/-. As this Tribunal has already observed that, the Petitioner No.1 is a wife and the Petitioner No.2 is a minor daughter of the deceased. Hence, the Petitioner No.1 is entitled for a sum of Rupees 1,00,000/- towards Loss of consortium and the Petitioner No.2 is entitled for a sum of Rupees 1,00,000/- towards loss of care and guidance for minor child and all the Petitioners are entitled for a sum of Rupees 25,000/- towards loss of love and affection and Rupees 25,000/- towards funeral expenses.

32. As this Tribunal has already observed about the production of Ex.P.12 Ambulance Bill, which is amounting of Rupees 7,000/-. The road traffic accident was taken place to the deceased near Chandu Motors, Kudlu Gate, Bangalore. The Petitioners are residing at Panpalli Village, Hidupura Taluk Ananthapur District. The same has clearly mentioned in Ex.P.12 Ambulance Bill. From this, it is made crystal clear that, the dead body of the deceased was transported from Bangalore to Panpalli Village, Hidupura Taluk Ananthapur District. Hence, it is just, proper and necessary to award a sum of Rupees 7,000/- towards transportation expenses of the dead body of deceased and Rupees

40,000/- towards loss of estate. Hence, the Petitioners are entitled for Rupees 7,000/- towards transportation expenses of the dead body of the deceased and Rupees 40,000/- towards loss of estate.

33. In this way, the Petitioners are entitled for the following amount of compensation :-

Sl. No. Compensation heads Compensation amount

1. Loss of Dependency Rs. 22,98,346-00

2. Loss of Consortium Rs. 1,00,000-00

3. Loss of care and guidance for Rs. 1,00,000-00 minor child

4. Funeral Expenses Rs. 25,000-00

5. Loss of Love and affection Rs. 25,000-00

6. Expenses of transportation Rs. 7,000-00 of dead body

7. Loss of Estate Rs. 40,000-00 TOTAL Rs. 25,95,346-00

34. In all, the Petitioners are entitled for total compensation of Rupees 25,95,346/- along with interest at the rate of 8% per annum on the above said sum from the date of petition till payment.

35. While answering Issue No.2, this Tribunal has already come to the conclusion that, due to very high speed, rash and negligent manner of driving of the offending Private Mini Bus bearing Registration No.KA-51-C-114 by its driver itself, the said road traffic accident was taken place, wherein, the deceased succumbed to the fatal injuries on the way to the Hospital and the offending Private Mini Bus bearing Registration No.KA-51-C-114 as well as its driver are very much involved in the said road traffic accident. The Petitioners in the cause title of the petition have mentioned that, the Respondent No.1 is an Insurer of Mini Bus bearing Registration No.KA-51-C-114 and its Policy No.3004/TM- 00253774/4/00/000, valid from 02.09.2014 to 01.09.2015. The Respondent No.1 in its Written Statement has clearly admitted that, they have insured the Mini Bus bearing Registration No.KA- 51-C-114 in terms of the policy of insurance issued, which is in accordance with the provisions of the Motor Vehicles Act and the liability of it, is limited to the terms and conditions of the policy of insurance issued, which is in accordance with the provisions of the Motor Vehicles Act. From this material evidence, which is available on record, it is made crystal clear that, at the time of accident, the Respondent No.1 was an Insurer and the Respondent No.2 was a R.C. Owner of the offending Private Mini Bus bearing Registration No.KA-51-C-114 and its Insurance Policy was valid, which covers the date of accident. There is no allegation leveled by the Investigating Officer in Ex.P.3 Charge Sheet as against the driver of the said offending Mini Bus bearing Registration No.KA-51-C-114 that, he was not having a valid and effective driving licence to drive such class of offending Bus at the time of accident. The violation of the terms and conditions of the admitted

Insurance Policy by the Respondent No.2 is not proved by the Respondent No.1. Under such circumstances, the Respondent No.1 being an Insurer and the Respondent No.2 being a R.C. Owner of the offending Private Mini Bus bearing Registration No.KA-51-C-114 are jointly and severally liable to pay the above said compensation and interest to the Petitioners. Since, the Respondent No.1 being an Insurer it shall indemnify the Respondent No.2. In view of the above said reasons, the principles enunciated in the decision cited by the Learned Counsel appearing for the Petitioners are aptly applicable to the present facts and circumstances of the case on hand. On the other hand, the principles enunciated in the decisions cited by the Learned Counsel appearing for the Respondent No.1 are not applicable to the present facts and circumstances of the case on hand. Hence, Issue No.3 is answered accordingly.

36. ISSUE NO.4 :- For the aforesaid reasons, I proceed to pass the following, ORDER The petition filed by the Petitioners under Section 166 of the Motor Vehicles Act, 1989, is hereby partly allowed with costs.

The Petitioners are entitled for compensation of Rupees 25,95,346/-

with interest at the rate of 9% p.a. from the date of the petition till the date of payment, from the Respondent No.1.

The Respondent No.1 shall deposit the said compensation and interest in this Tribunal, within one month from the date of this Order.

The Petitioners No.1 to 4 shall share the compensation and interest amount in the ratio of 50:20:10:20.

In the event of deposit of compensation and interest, 50% shares shall be released in their respective names through account payee cheques, on proper identification.

Remaining 50% shares relating to the Petitioners No.1, 3 and 4 shall be kept in FD in their respective names, in any nationalized Bank of their choice, for a period of 3 years.

The entire share relating to the Petitioner No.2 shall be kept in FD in her name, in any nationalized Bank of the choice of her guardian, till she attains the age of majority.

Advocate's fee is fixed at Rupees 1,000/-.

Draw award accordingly.

(Dictated to the Stenographer, transcribed and typed by her, corrected and then, pronounced by me in the open Court on this, the 19th day of October, 2016.) (INDIRA MAILSWAMY CHETTIYAR) IX Addl. Small Causes Judge & XXXIV ACMM, Court of Small Causes, Member, MACT-7, Bangalore.

ANNEXURE

1. WITNESSES EXAMINED BY THE PETITIONERS :-

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P.W.1    :   Mrs. M. Rathnamma
P.W.2    :   Sri. K. Sainath Reddy
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2. DOCUMENTS MARKED BY THE PETITIONERS :-

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Ex.P.1    :   True copy of FIR
Ex.P.2    :   True copy of Complaint
Ex.P.3    :   True copy of Charge Sheet
Ex.P.4    :   True copy of Spot Hand Sketch
Ex.P.5    :   True copy of Spot Panchanama
Ex.P.6    :   True copy of MVI Report
Ex.P.7    :   True copy of Inquest
Ex.P.8    :   True copy of PM Report
Ex.P.9    :   True copy of Death Certificate relating
              to M. Eshwarappa
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Ex.P.10 : Pay Slip for the month of March 2015 relating to Eshwarappa. M. Ex.P.11 : True copy of Bank Statement Ex.P.12 : Ambulance Bill Ex.P.13 : Notarised xerox copy of Aadhaar Card relating to M. Rathnamma Ex.P.14 : Notarised xerox copy of Aadhaar Card relating to E. Ashwini Sindhu Ex.P.15 : Notarised xerox copy of Election Identity Card relating to Venkappa Ex.P.16 : Notarised xerox copy of Election Identity Card relating to Ramanjinamma Ex.P.17 : Notarised xerox copy of Birth Certificate relating to E. Ashwini Sindhu

3. WITNESSES EXAMINED BY THE RESPONDENTS :-

-NIL-

4. DOCUMENTS MARKED BY THE RESPONDENTS :-

-NIL-

(INDIRA MAILSWAMY CHETTIYAR) IX Addl. Small Causes Judge & XXXIV ACMM, Court of Small Causes, Member, MACT-7, Bangalore.